



INDIAN LAW & DEALMAKING · 26 AUGUST 2026

# Five moves shaping the board now.

- › NCLT admits ILFS petition against Adhunik Meghalaya
- › Supreme Court bars individual homebuyer refunds in Jaiprakash CIRP
- › SEBI attaches assets for Jay Energy recovery
- › Honasa terminates Fluence Pharma acquisition deal
- › ED secures judicial custody of Karumuri Venkata Nageswara Rao

SWIPE →



INSOLVENCY · NCLT GUWAHATI

01 / 05

# NCLT admits ILFS plea against Adhunik Meghalaya

On 25 August 2026, NCLT Guwahati admitted a Section 7 application filed by IL&FS Financial Services Ltd. against Adhunik Meghalaya Steels Pvt. Ltd. for a default of ₹55.45 crore. The tribunal held that pledge-enforcement disputes do not bar CIRP and noted that limitation objections were already settled by prior Supreme Court orders.

## THE READ

*Pledge disputes cannot derail a valid Section 7 admission once financial debt and default are established. Creditors should rely on clear default thresholds rather than getting bogged down in collateral-enforcement distractions.*



# Apex court blocks individual homebuyer refund requests

On 26 August 2026, the Supreme Court upheld NCLAT decisions refusing to entertain an allottee's request for a ₹4 lakh refund within the Jaiprakash Associates Ltd. CIRP. The court ruled that individual claimants cannot bypass collective resolution frameworks to seek standalone refunds through appellate channels.

## THE READ

*Individual refund applications disrupt the collective insolvency mechanism and will be routinely rejected. Allottees must channel their recovery claims entirely through the established resolution-plan voting and approval process.*



SECURITIES · SEBI ENFORCEMENT

03 / 05

# SEBI attaches assets against Jay Energy recovery certificate

On 25 August 2026, SEBI issued compliance notices to attach demat accounts and mutual fund folios under Recovery Certificate Number 8932 of 2025 against Jay Energy and S. Energies Ltd. This enforcement action marks a direct coercive recovery step by the regulator.

## THE READ

*Asset attachments signal an immediate shift from adjudication to strict coercive recovery of dues. Entities facing recovery certificates must urgently pursue statutory settlements before folios are frozen.*



# Honasa cancels Fluence Pharma acquisition deal

On 25 August 2026, Honasa Consumer Ltd. terminated its proposed acquisition of a 58 percent stake in Fluence Pharma after closing conditions under the share purchase agreement failed. The abandoned transaction carried an enterprise valuation of ₹135 crore.

## THE READ

*Unfulfilled conditions precedent provide a clean exit strategy from troubled transactions without long-term exposure. Deal makers must draft tight MAC clauses and closing conditions to protect corporate capital.*



ED · PMLA ENFORCEMENT

05 / 05

# ED secures custody of former minister in liquor scam

On 23 August 2026, the ED arrested former Andhra Pradesh minister Karumuri Venkata Nageswara Rao over an alleged ₹195.33 crore exchequer loss linked to APSBCL liquor transportation. The special court in Nampally remanded him to 15 days of judicial custody following earlier asset attachments of ₹37.79 crore.

THE READ

*PMLA investigations targeting high-value state-exchequer losses routinely culminate in swift custodial remands and preemptive asset freezes. Defense strategies must challenge the necessity of custody early by attacking the predicate offense foundations.*



## THE THROUGH-LINE

These developments highlight aggressive regulatory and judicial intolerance for procedural shortcuts across corporate and criminal forums. Whether dealing with NCLT admission barriers, SEBI recovery mechanisms, or PMLA custody battles, strict adherence to statutory frameworks remains paramount. Legal strategists must prioritize collective mechanisms and airtight compliance over individual workaround attempts.





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